

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 2058

By: Stinson

AS INTRODUCED

An Act relating to protective orders and fees; amending 22 O.S. 2021, Section 60.2, as last amended by Section 1, Chapter 305, O.S.L. 2023 (22 O.S. Supp. 2024, Section 60.2), which relates to the Protection from Domestic Abuse Act; clarifying those authorized to seek relief under the Protection from Domestic Abuse Act; amending 28 O.S. 2021, Section 153, as amended by Section 2, Chapter 237, O.S.L. 2022 (28 O.S. Supp. 2024, Section 153), which relates to fees in criminal cases; providing sheriff's fee for service of stalking warning letters; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 22 O.S. 2021, Section 60.2, as last amended by Section 1, Chapter 305, O.S.L. 2023 (22 O.S. Supp. 2024, Section 60.2), is amended to read as follows:

Section 60.2. A. A victim of domestic abuse, a victim of stalking, a victim of harassment, a victim of rape, any adult or emancipated minor household member on behalf of any other family or household member who is a minor or incompetent, any minor age

1 sixteen (16) or seventeen (17) years, or any adult victim of a crime
2 with a need to prevent further victimization, may seek relief under
3 the provisions of the Protection from Domestic Abuse Act.

4 1. The person seeking relief may file a petition for a
5 protective order with the district court in the county in which the
6 victim resides, the county in which the defendant resides, or the
7 county in which the domestic violence occurred. If the person
8 seeking relief is not a family or household member or an individual
9 who is or has been in a dating relationship with the defendant, the
10 person seeking relief must file a complaint against the defendant
11 with the proper law enforcement agency before filing a petition for
12 a protective order with the district court. The person seeking
13 relief shall provide a copy of the complaint that was filed with the
14 law enforcement agency at the full hearing if the complaint is not
15 available from the law enforcement agency. Failure to provide a
16 copy of the complaint filed with the law enforcement agency shall
17 constitute a frivolous filing and the court may assess attorney fees
18 and court costs against the plaintiff pursuant to paragraph 2 of
19 subsection C of this section. The filing of a petition for a
20 protective order shall not require jurisdiction or venue of the
21 criminal offense if either the plaintiff or defendant resides in the
22 county. If a petition has been filed in an action for divorce or
23 separate maintenance and either party to the action files a petition
24 for a protective order in the same county where the action for

1 divorce or separate maintenance is filed, the petition for the
2 protective order may be heard by the court hearing the divorce or
3 separate maintenance action if:

4 a. there is no established protective order docket in
5 such court, or

6 b. the court finds that, in the interest of judicial
7 economy, both actions may be heard together; provided,
8 however, the petition for a protective order,
9 including, but not limited to, a petition in which
10 children are named as petitioners, shall remain a
11 separate action and a separate order shall be entered
12 in the protective order action. Protective orders may
13 be dismissed in favor of restraining orders in the
14 divorce or separate maintenance action if the court
15 specifically finds, upon hearing, that such dismissal
16 is in the best interests of the parties and does not
17 compromise the safety of any petitioner.

18 If the defendant is a minor child, the petition shall be filed
19 with the court having jurisdiction over juvenile matters.

20 2. When the abuse occurs when the court is not open for
21 business, such person may request an emergency temporary order of
22 protection as authorized by Section 40.3 of this title.
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1 B. The petition forms shall be provided by the clerk of the
2 court. The Administrative Office of the Courts shall develop a
3 standard form for the petition.

4 C. 1. Except as otherwise provided by this section, no filing
5 fee, service of process fee, attorney fees or any other fee or costs
6 shall be charged the plaintiff or victim at any time for filing a
7 petition for a protective order whether a protective order is
8 granted or not granted. The court may assess court costs, service
9 of process fees, attorney fees, other fees and filing fees against
10 the defendant at the hearing on the petition, if a protective order
11 is granted against the defendant; provided, the court shall have
12 authority to waive the costs and fees if the court finds that the
13 party does not have the ability to pay the costs and fees.

14 2. If the court makes specific findings that a petition for a
15 protective order has been filed frivolously and no victim exists,
16 the court may assess attorney fees and court costs against the
17 plaintiff.

18 D. The person seeking relief shall prepare the petition or, at
19 the request of the plaintiff, the court clerk or the victim-witness
20 coordinator, victim support person, and court case manager shall
21 prepare or assist the plaintiff in preparing the petition.

22 E. The person seeking a protective order may further request
23 the exclusive care, possession, or control of any animal owned,
24 possessed, leased, kept, or held by either the petitioner, defendant

1 or minor child residing in the residence of the petitioner or
2 defendant. The court may order the defendant to make no contact
3 with the animal and forbid the defendant from taking, transferring,
4 encumbering, concealing, molesting, attacking, striking,
5 threatening, harming, or otherwise disposing of the animal.

6 F. A court may not require the victim to seek legal sanctions
7 against the defendant including, but not limited to, divorce,
8 separation, paternity or criminal proceedings prior to hearing a
9 petition for protective order.

10 G. A victim of rape, forcible sodomy, a sex offense,
11 kidnapping, assault and battery with a deadly weapon, child abuse,
12 or member of the immediate family of a victim of first-degree
13 murder, as such terms are defined in Section 40 of this title, may
14 petition, or have a petition filed on the victim's behalf if the
15 victim is a minor, for an emergency temporary order or emergency ex
16 parte order regardless of any relationship or scenario pursuant to
17 the provisions of this section. The Administrative Office of the
18 Courts shall modify the petition forms as necessary to effectuate
19 the provisions of this subsection.

20 SECTION 2. AMENDATORY 28 O.S. 2021, Section 153, as
21 amended by Section 2, Chapter 237, O.S.L. 2022 (28 O.S. Supp. 2024,
22 Section 153), is amended to read as follows:

23 Section 153. A. The clerks of the courts shall collect as
24 costs in every criminal case for each offense of which the defendant

1 is convicted, irrespective of whether or not the sentence is
2 deferred, the following flat charges and no more, except for
3 standing and parking violations and for charges otherwise provided
4 for by law, which fee shall cover docketing of the case, filing of
5 all papers, issuance of process, warrants, orders, and other
6 services to the date of judgment:

7 1. For each defendant convicted of
8 exceeding the speed limit by at least
9 one (1) mile per hour but not more than
10 ten (10) miles per hour, whether charged
11 individually or conjointly with others.....\$77.00

12 2. For each defendant convicted of a
13 misdemeanor traffic violation other than
14 an offense provided for in paragraph 1
15 or 5 of this subsection, whether charged
16 individually or conjointly with others.....\$98.00

17 3. For each defendant convicted of a
18 misdemeanor, other than for driving
19 under the influence of alcohol or other
20 intoxicating substance or an offense
21 provided for in paragraph 1 or 2 of this
22 subsection, whether charged individually
23 or conjointly with others.....\$93.00

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4. For each defendant convicted of a
felony, other than for driving under the
influence of alcohol or other
intoxicating substance, whether charged
individually or conjointly with others.....\$103.00
5. For each defendant convicted of the
misdemeanor of driving under the
influence of alcohol or other
intoxicating substance, whether charged
individually or conjointly with others.....\$433.00
6. For each defendant convicted of the
felony of driving under the influence of
alcohol or other intoxicating substance,
whether charged individually or
conjointly with others.....\$433.00
7. For the services of a court reporter at
each preliminary hearing and trial held
in the case.....\$20.00
8. For each time a jury is requested.....\$30.00
9. A sheriff's fee for serving or
endeavoring to serve each writ, warrant,
order, process, command, ~~or~~ notice, or
stalking warning letter, or pursuing any
fugitive from justice

a. within the county..... \$50.00, or

mileage as

established by the

Oklahoma Statutes,

whichever is

greater, or

b. outside of the county..... \$50.00, or

actual, necessary

expenses, whichever

is greater

B. In addition to the amount collected pursuant to paragraphs 2 through 6 of subsection A of this section, the sum of Six Dollars (\$6.00) shall be assessed and credited to the Law Library Fund pursuant to Section 1201 et seq. of Title 20 of the Oklahoma Statutes.

C. In addition to the amount collected pursuant to subsection A of this section, the sum of Twenty Dollars (\$20.00) shall be assessed and collected in every traffic case for each offense other than for driving under the influence of alcohol or other intoxicating substance; the sum of Thirty Dollars (\$30.00) shall be assessed and collected in every misdemeanor case for each offense; the sum of Thirty Dollars (\$30.00) shall be assessed and collected in every misdemeanor case for each offense for driving under the influence of alcohol or other intoxicating substance; the sum of

1 Fifty Dollars (\$50.00) shall be assessed and collected in every
2 felony case for each offense; and the sum of Fifty Dollars (\$50.00)
3 shall be assessed and collected in every felony case for each
4 offense for driving under the influence of alcohol or other
5 intoxicating substance.

6 D. In addition to the amounts collected pursuant to subsections
7 A and B of this section, the sum of Twenty-five Dollars (\$25.00)
8 shall be assessed and credited to the Oklahoma Court Information
9 System Revolving Fund created pursuant to Section 1315 of Title 20
10 of the Oklahoma Statutes.

11 E. In addition to the amount collected pursuant to paragraphs 1
12 through 6 of subsection A of this section, the sum of Ten Dollars
13 (\$10.00) shall be assessed and credited to the Sheriff's Service Fee
14 Account in the county in which the conviction occurred for the
15 purpose of enhancing existing or providing additional courthouse
16 security.

17 F. In addition to the amounts collected pursuant to paragraphs
18 1 through 6 of subsection A of this section, the sum of Three
19 Dollars (\$3.00) shall be assessed and credited to the Office of the
20 Attorney General Victim Services Unit.

21 G. In addition to the amounts collected pursuant to paragraphs
22 1 through 6 of subsection A of this section, the sum of Three
23 Dollars (\$3.00) shall be assessed and credited to the Child Abuse
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1 Multidisciplinary Account. This fee shall not be used for purposes
2 of hiring or employing any law enforcement officers.

3 H. In addition to the amount collected pursuant to paragraphs 5
4 and 6 of subsection A of this section, the sum of Fifteen Dollars
5 (\$15.00) shall be assessed in every misdemeanor or felony case for
6 each offense of driving under the influence of alcohol or other
7 intoxicating substance and credited to the Oklahoma Impaired Driver
8 Database Revolving Fund created pursuant to Section 11-902d of Title
9 47 of the Oklahoma Statutes.

10 I. Prior to conviction, parties in criminal cases shall not be
11 required to pay, advance, or post security for the issuance or
12 service of process to obtain compulsory attendance of witnesses.

13 J. The amounts to be assessed as court costs upon filing of a
14 case shall be those amounts above-stated in paragraph 3 or 4 of
15 subsection A and subsections B, C, D and E of this section.

16 K. The fees collected pursuant to this section shall be
17 deposited into the court fund, except the following:

18 1. A court clerk issuing a misdemeanor warrant is entitled to
19 ten percent (10%) of the sheriff's service fee, provided for in
20 paragraph 9 of subsection A of this section, collected on a warrant
21 referred to the contractor for the misdemeanor warrant notification
22 program governed by Sections 514.4 and 514.5 of Title 19 of the
23 Oklahoma Statutes. This ten-percent sum shall be deposited into the
24 issuing Court Clerk's Revolving Fund, created pursuant to Section

1 220 of Title 19 of the Oklahoma Statutes, of the court clerk issuing
2 the warrant with the balance of the sheriff's service fee to be
3 deposited into the Sheriff's Service Fee Account, created pursuant
4 to the provisions of Section 514.1 of Title 19 of the Oklahoma
5 Statutes, of the sheriff in the county in which service is made or
6 attempted. Otherwise, the sheriff's service fee, when collected,
7 shall be deposited in its entirety into the Sheriff's Service Fee
8 Account of the sheriff in the county in which service is made or
9 attempted;

10 2. The sheriff's fee provided for in Section 153.2 of this
11 title;

12 3. The witness fees paid by the district attorney pursuant to
13 the provisions of Section 82 of this title which, if collected by
14 the court clerk, shall be transferred to the district attorney's
15 office in the county where witness attendance was required. Fees
16 transferred pursuant to this paragraph shall be deposited in the
17 district attorney's maintenance and operating expense account;

18 4. The fees provided for in subsection C of this section shall
19 be forwarded to the District Attorneys Council Revolving Fund to
20 defray the costs of prosecution; and

21 5. The following amounts of the fees provided for in paragraphs
22 2, 3, 5 and 6 of subsection A of this section, when collected, shall
23 be deposited in the Trauma Care Assistance Revolving Fund, created
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1 pursuant to the provisions of Section 1-2530.9 of Title 63 of the
2 Oklahoma Statutes:

3 a. Ten Dollars (\$10.00) of the Ninety-eight-Dollar fee
4 provided for in paragraph 2 of subsection A of this
5 section,

6 b. Ten Dollars (\$10.00) of the Ninety-three-Dollar fee
7 provided for in paragraph 3 of subsection A of this
8 section,

9 c. One Hundred Dollars (\$100.00) of the Four-Hundred-
10 Thirty-three-Dollar fee provided for in paragraph 5 of
11 subsection A of this section, and

12 d. One Hundred Dollars (\$100.00) of the Four-Hundred-
13 Thirty-three-Dollar fee provided for in paragraph 6 of
14 subsection A of this section.

15 L. As used in this section, "convicted" means any final
16 adjudication of guilt, whether pursuant to a plea of guilty or nolo
17 contendere or otherwise, and any deferred judgment or suspended
18 sentence.

19 M. A court clerk may accept in payment for any fee, fine,
20 forfeiture payment, cost, penalty assessment or other charge or
21 collection to be assessed or collected by a court clerk pursuant to
22 this section a nationally recognized credit card or debit card or
23 other electronic payment method as provided in paragraph 1 of
24 subsection B of Section 151 of this title.

1 N. Upon receipt of payment of fines and costs for offenses
2 charged prior to July 1, 1992, the court clerk shall apportion and
3 pay Thirteen Dollars (\$13.00) per conviction to the court fund.

4 SECTION 3. This act shall become effective November 1, 2025.
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